

CHILD RIGHTS AND WOMEN EMPOWERMENT

In context to women and youth empowerment WOSCA since its inception has promoted SHGs and facilitated various training, business plan development to women SHGS on vegetable cultivation, goat rearing and poultry etc. Through various need-based program focus has been made to empower women and turn them as successful entrepreneur in various sustainable livelihood income generating activities so that they can be empowered. Even campaign on violence against women has been observed to create violence free society. Active initiative has been taken by WOSCA to stop child labour, child marriage and educate the community on the importance of quality education. Organisation has also taken positive measure to strengthen the capacities and leadership of elected women representative through various need-based program. Youth are also empowered on road safety and traffic rules. In addition many need based vocational trainings are also provided so that they can be self-sustainable

The vision of the Women and Child Development (WCD) Division is to provide policy inputs for gender empowerment and improve the nutritional outcomes of women and children. The Division designs strategic and long-term policy and programme frameworks and initiatives for improving the nutrition of women and children, and monitors their progress and their efficacy. It provides advice and encourages partnerships between key stakeholders and international and national think tanks, educational and policy-research institutions. The Division also maintains a state-of-the-art resource centre on nutrition.

The specific challenge facing girls

From the recently published “Child Labour, Global Estimates 2020, Trends and the road forward”, out the 160 million children in child labour, 39% are girls. However, this figure does not include household chores in children’s own homes.

The gender dimension of child labour is important to consider as there are differences in how girls and boys are involved in child labour and girls may face specific risks. Girls in child labour are much more likely to be in services, including domestic work, which is generally under-reported. Domestic work, including in third-party households is a form of child labour that is usually hidden from public view and beyond the scope of labour inspectorates, leaving girls especially vulnerable to abuse.

When the definition of child labour expands to include household chores for 21 hours or more each week, which is categorised as hazardous, the gender gap in prevalence among boys and girls aged 5 to 14 is reduced by almost half.

Worldwide, 7.1 million children are engaged in forms of domestic work that constitute child labour. Of these, 4.4 million (or 62%) are girls, and 2.5 million (or 57%) are aged 5-11 years.

Specific measures to end child labour amongst girls:

- Enact explicit laws and put in place enforcement mechanisms and child protection interventions to counter the risks faced by all children, but especially girls, engaged in domestic work.
- Implement community-based dialogue, social and behaviour change interventions, and parenting programmes to help counter unequal gender norms that encourage overburdening girls with household chores in their own homes.
- Implement cash transfer and other social assistance programmes designed to diminish financial barriers to quality education and learning for girls.
- Increase flexible learning paths so that all girls benefit from quality education and provide more support to girls to pursue education that leads to more equal employment opportunities in all sectors, including in fields such as science and technology.

Women socio-economic empowerment to fight child labour

Women can play a crucial role in the fight against child labour. Let's examine some approaches that can make a difference.

Education is a central element to the tackling of child labour, especially the education of women and girls. When women are educated, their children are less likely to be involved in child labour and hazardous work. By improving the literacy and numeracy skills of women, poverty is reduced, which is one of the main drivers of child labour.

Empowering women economically is another powerful means of reducing child labour. When women can generate income and be provided with greater access to finance to start or grow small businesses, the impact on communities, especially children can be transformative. When women can generate additional income, families can be lifted out of poverty and children are more likely to stay in school. Additional income also helps families better deal with shocks, such as the ongoing Covid-19 pandemic, and mitigate the need to rely on children for labour.

Women should be actively and equally involved in child labour eradication programmes and when they are, they are more likely to succeed. For example, when more women are employed as child labour monitors, monitoring programmes improve. Without the leadership and commitment of women to the cause of ending child labour, they are doomed to fail from the outset.

All of these approaches are aimed at empowering women to be the change makers in their families and communities. When women are provided with the support and means to take decisions on behalf of their families, children are less likely to drop out from school and become involved in child labour.

Women and girls must be at the centre of all solutions for the eradication of child labour!

The European Union's commitment on women and girls

The EU is already committed to taking action to support gender equality in its international cooperation. To help eradicate child labour, the EU is promoting wider access for women and girls to quality education and skills, the creation of decent jobs and income generation activities for women. Expanding social protection systems, and improving legal frameworks, taking into account the specific country context and situation of women and girls are also part of the EU actions.

CLEAR Cotton project incorporating a gender focus and empowering women

In implementing the EU funded CLEAR Cotton project in Pakistan with International Labour Organisation, the Food and Agriculture Organization (FAO) is working in cotton growing communities to empower women to reduce child labour.

They conducted a study with the Punjab Economic Research Institution (PERI) on 'Gender Roles – Related Work Burden – and their Effects on Child Labour in Agriculture in Punjab'. The research demonstrates the clear link between child labour and the distribution of tasks and responsibilities on farms at the household level, which has different implications for boys and girls.

The work burden of the whole family is dependent on three crop cycles per year, however, the limited income from the same crops does not allow for the investment in more profitable and stable revenues or the education of children.

That's why FAO is assessing the agri-food market to identify viable economic opportunities to implement Income Generating Activities for women in small-

scale farmers' and households. Women will be trained to form social cooperatives or self-help groups, and accompanied to invest in children's education.

Children's rights: rights adapted to children

Children's rights are human rights specifically adapted to the child because they take into account their fragility, specificities and age-appropriate needs.

Children's rights take into account the necessity of development of the child. The children thus have the right to live and to develop suitably physically and intellectually.

Children's rights plan to satisfy the essential needs for good development of the child, such as the access to an appropriate alimentation, to necessary care, to education, etc.

Children's rights consider the vulnerable character of the child. They imply the necessity to protect them. It means to grant particular assistance to them and to provide protection adapted to their age and to their degree of maturity.

So, the children have to be helped and supported and must be protected against labour exploitation, kidnapping, and ill-treatment, etc.

Children have two types of human rights under international human rights law. They have the same fundamental general human rights as adults, although some human rights, such as the *right to marry*, are dormant until they are of age, Secondly, they have special human rights that are necessary to protect them during their minority.^[18] General rights operative in childhood include the *right to security of the person, to freedom from inhuman, cruel, or degrading treatment*, and the *right to special protection during childhood*.^[19] Particular human rights of children include, among other rights, the *right to life*, the *right to a name*, the *right to express his views in matters concerning the child*, the *right to freedom of thought, conscience and religion*, the right to health care, the *right to protection from economic and sexual exploitation*, and the *right to education*.^[2]

Children's rights are defined in numerous ways, including a wide spectrum of civil, political, economic, social and cultural rights. Rights tend to be of two general types: those advocating for children as autonomous persons under the law and those placing a claim on society for protection from harms perpetrated on children because of their dependency. These have been labeled as the *right of empowerment* and as the *right to protection*.^[16]

United Nations educational guides for children classify the rights outlined in the Convention on the Rights of the Child as the "3 Ps": Provision, Protection, and Participation.^[20] They may be elaborated as follows:

- **Provision:** Children have the right to an adequate standard of living, health care, education and services, and to play and recreation. These include a balanced diet, a warm bed to sleep in, and access to schooling.
- **Protection:** Children have the right to protection from abuse, neglect, exploitation and discrimination. This includes the right to safe places for children to play; constructive child rearing behavior, and acknowledgment of the evolving capacities of children.
- **Participation:** Children have the right to participate in communities and have programs and services for themselves. This includes children's involvement in libraries and community programs, youth voice activities, and involving children as decision-makers.^[21]

In a similar fashion, the Child Rights International Network (CRIN) categorizes rights into two groups:^{[22][23]}

- Economic, social and cultural rights, related to the conditions necessary to meet basic human needs such as food, shelter, education, health care, and gainful employment. Included are rights to education, adequate housing, food, water, the highest attainable standard of health, the right to work and rights at work, as well as the cultural rights of minorities and indigenous peoples.
- Environmental, cultural and developmental rights, which are sometimes called "third generation rights", and including the right to live in safe and healthy environments and that groups of people have the right to cultural, political, and economic development.

Amnesty International openly advocates four particular children's rights, including the end to juvenile incarceration without parole, an end to the recruitment of military use of children, ending the death penalty for people under 21, and raising awareness of human rights in the classroom.^[1] Human Rights Watch, an international advocacy organization, includes child labour, juvenile justice, orphans and abandoned children, refugees, street children and corporal punishment.

Scholarly study generally focuses children's rights by identifying individual rights. The following rights "allow children to grow up healthy and free":^{[according to whom?][24]}

- Freedom of speech
- Freedom of thought

- Freedom from fear
- Freedom of choice and the right to make decisions
- Ownership over one's body

Physical rights

A report by the Committee on Social Affairs, Health, and Sustainable Development of the Parliamentary Assembly of the Council of Europe identified several areas the Committee was concerned about, including procedures such as "female genital mutilation, the circumcision of young boys for religious reasons, early childhood medical interventions in the case of intersex children and the submission to or coercion of children into piercings, tattoos or plastic surgery".^[25] The Assembly adopted a non-binding resolution in 2013 that calls on its 47 member-states to take numerous actions to promote the physical integrity of children.^[26]

Article 19 of the Convention on the Rights of the Child enjoins parties to "take all appropriate legislative, administrative, social and educational measures to protect the child from all forms of physical or mental violence, injury or abuse, neglect or negligent treatment, maltreatment or exploitation".^[27] The Committee on the Rights of the Child interprets article 19 as prohibiting corporal punishment, commenting on the "obligation of all States Party to move quickly to prohibit and eliminate all corporal punishment."^[28] The United Nations Human Rights Committee has also interpreted Article 7 of the International Covenant on Civil and Political Rights prohibiting "cruel, inhuman or degrading treatment or punishment" to extend to children, including corporal punishment of children.^[29]

Newell (1993) argued that "...pressure for protection of children's physical integrity should be an integral part of pressure for all children's rights."^[30]

The Committee on Bioethics of the American Academy of Pediatrics (AAP) (1997), citing the Convention on the Rights of the Child (1989), asserts that "every child should have the opportunity to grow and develop free from preventable illness or injury."^[31]

Intersex rights



The standard medical model was medical falsification for intersex children, from textbook 1963.

Main articles: Intersex human rights and Intersex genital mutilation

Intersex children are children born or develop, atypical sexual traits. Historically intersex children have been the subject of involuntary surgical assignment and later hormone replacement therapy to a binary sex/gender, which was often concealed from patients; in the US, this system was known as the optimum gender of rearing model, which organizations such as the ISNA heavily criticized.^{[32][33]} Intersex children often face high levels of mental stress, and stigmatization, as well as isolation for having atypical bodies, or undergoing medical procedures.^{[32][34]}

The World Health Organization standard of care for intersex children is to delay all surgery until the child is old enough to participate in informed consent, unless emergency surgery is needed.^{[35][36]} Intersex people are likewise more likely to develop gender dysphoria than the general population. Organizations such as InterACT and intersex civil society groups exist to support and advocate for intersex youth, and stop involuntary unnecessary medicalization and shame surrounding intersex subjects.^{[32][37]}

Other issues

Other issues affecting children's rights include the military use of children, sale of children, child prostitution and child pornography.

Difference between children's rights and youth rights

Main article: Youth rights

In the majority of jurisdictions, for instance, children are not allowed to vote, to marry, to buy alcohol, to have sex, or to engage in paid employment.^[38] Within the youth rights movement, it is believed that the key difference between *children's* rights and *youth* rights is that children's rights supporters generally advocate the establishment and enforcement of protection for children and youths, while youth rights (a far smaller movement) generally advocates the expansion of freedom for children and/or youths and of rights such as suffrage.

Parental powers

See also: Parents' rights movement

Parents are given sufficient powers to fulfill their duties to the child.^[10]

Parents affect the lives of children in a unique way, and as such their role in children's rights has to be distinguished in a particular way. Particular issues in the child-parent relationship include child neglect, child abuse, freedom of choice, corporal punishment and child custody.^{[39][40]} There have been theories offered that provide parents with rights-based practices that resolve the tension between "commonsense parenting" and children's rights.^[41] The issue is particularly relevant in legal proceedings that affect the potential emancipation of minors, and in cases where children sue their parents.^[42]

A child's rights to a relationship with both their parents is increasingly recognized as an important factor for determining the best interests of the child in divorce and child custody proceedings. Some governments have enacted laws creating a rebuttable presumption that shared parenting is in the best interests of children.^[43]

Limitations of parental powers

Parents do not have absolute power over their children. Parents are subject to criminal laws against abandonment, abuse, and neglect of children. International human rights law provides that manifestation of one's religion may be limited in the interests of public safety, for the protection of public order, health or morals, or for the protection of the rights and freedoms of others.^{[19][44]}

Courts have placed other limits on parental powers and acts. The Supreme Court of the United States, in the case of Prince v. Massachusetts, ruled that a parent's religion does not permit a child to be placed at risk.^[45] The Lords of Appeal in Ordinary ruled, in the case of Gillick v West Norfolk and Wisbech Area Health Authority and another, that parental rights diminish with the increasing age and competency of the child, but do not vanish completely until the child reaches majority. Parental rights are derived from the parent's duties to the child. In the absence of duty, no parental right exists.^{[46][47]} The Supreme Court of Canada ruled, in the case of E (Mrs) v Eve, that parents may not grant surrogate consent for non-therapeutic sterilization.^[48] The Supreme Court of Canada has ruled, in the case of B. (R.) v. Children's Aid Society of Metropolitan Toronto:^[49]

While children undeniably benefit from the Charter, most notably in its protection of their rights to life and to the security of their person, they are unable to assert these rights, and our society accordingly presumes that parents

will exercise their freedom of choice in a manner that does not offend the rights of their children.

Adler (2013) argues that parents are not empowered to grant surrogate consent for non-therapeutic circumcision of children.^[47]

Movement

Main article: Children's rights movement

See also: Timeline of young people's rights in the United Kingdom and Timeline of young people's rights in the United States

The 1796 publication of Thomas Spence's *Rights of Infants* is among the earliest English-language assertions of the rights of children. Throughout the 20th century, children's rights activists organized for homeless children's rights and public education. The 1927 publication of *The Child's Right to Respect* by Janusz Korczak strengthened the literature surrounding the field, and today dozens of international organizations are working around the world to promote children's rights. In the UK the formation of a community of educationalists, teachers, youth justice workers, politicians and cultural contributors called the New Ideals in Education Conferences^[50] (1914–37) stood for the value of 'liberating the child' and helped to define the 'good' primary school in England until the 80s.^[51] Their conferences inspired the UNESCO organisation, the New Education Fellowship.

A.S. Neill's 1915 book *A Dominie's Log* (1915), a diary of a headteacher changing his school to one based on the liberation and happiness of the child, can be seen as a cultural product that celebrates the heroes of this movement.^[citation needed]

Opposition

The opposition to children's rights long predates any current trend in society, with recorded statements against the rights of children dating to the 13th century and earlier.^[52] Opponents to children's rights believe that young people need to be protected from the adultcentric world, including the decisions and responsibilities of that world.^[53] In a dominantly adult society, childhood is idealized as a time of innocence, a time free of responsibility and conflict, and a time dominated by play.^[54] The majority of opposition stems from concerns related to national sovereignty, states' rights, the parent-child relationship.^[55] Financial constraints and the "undercurrent of traditional values in opposition to children's rights" are cited, as well.^[56] The concept of children's rights has received little attention in the United States.^[57]

International human rights law

Further information: International child abduction

Main article: Declaration of the Rights of the Child

The Universal Declaration of Human Rights is seen as a basis for all international legal standards for children's rights today. There are several conventions and laws that address children's rights around the world. A number of current and historical documents affect those rights, including the Declaration of the Rights of the Child,^[11] drafted by Eglantyne Jebb in 1923, endorsed by the League of Nations in 1924 and reaffirmed in 1934. A slightly expanded version was adopted by the United Nations in 1946, followed by a much expanded version adopted by the General Assembly in 1959. It later served as the basis for the Convention on the Rights of the Child.

International Covenant on Civil and Political Rights

The United Nations adopted the International Covenant on Civil and Political Rights (ICCPR) in 1966. The ICCPR is a multilateral international covenant that has been ratified or acceded to by nearly all nations on Earth. Nations which have become state-parties to the Covenant are required to honor and enforce the rights enunciated by the Covenant. The treaty came into effect on 23 March 1976. The rights codified by the ICCPR are universal, so they apply to everyone without exception and this includes children. Although children have all rights, some rights such as the right to marry and the right to vote come into effect only after the child reaches maturity.^[19]

Some general rights applicable to children include:

- the right to life
- the right to security of person
- the right to freedom from torture
- the right to freedom from cruel, inhuman or degrading treatment or punishment
- the right to be separated from adults when charged with a crime, the right to speedy adjudication, and the right to be accorded treatment appropriate to their age^[19]

Article 24 codifies the right of the child to special protection due to his minority, the right to a name, and the right to a nationality.^[19]

Convention on the Rights of the Child

Main article: Convention on the Rights of the Child

The United Nations' 1989 Convention on the Rights of the Child, or CRC, is the first legally binding international instrument to incorporate the full range of human rights—civil, cultural, economic, political and social rights. Its implementation is monitored by the Committee on the Rights of the Child. National governments that ratify it commit themselves to protecting and

ensuring children's rights, and agree to hold themselves accountable for this commitment before the international community.^[58] The CRC is the most widely ratified human rights treaty with 196 ratifications; the United States is the only country not to have ratified it.^[59]

The CRC is based on four core principles: the principle of non-discrimination; the best interests of the child; the right to life, survival and development; and considering the views of the child in decisions that affect them, according to their age and maturity.^[60] The CRC, along with international criminal accountability mechanisms such as the International Criminal Court, the Yugoslavia and Rwanda Tribunals, and the Special Court for Sierra Leone, is said to have significantly increased the profile of children's rights worldwide.^[61]

Vienna Declaration and Programme of Action

The Vienna Declaration and Programme of Action urges, at Section II para 47, all nations to undertake measures to the maximum extent of their available resources, with the support of international cooperation, to achieve the goals in the World Summit Plan of Action. And calls on States to integrate the Convention on the Rights of the Child into their national action plans. By means of these national action plans and through international efforts, particular priority should be placed on reducing infant and maternal mortality rates, reducing malnutrition and illiteracy rates and providing access to safe drinking water and basic education. Whenever so called for, national plans of action should be devised to combat devastating emergencies resulting from natural disasters and armed conflicts and the equally grave problem of children in extreme poverty. Further, para 48 urges all states, with the support of international cooperation, to address the acute problem of children under especially difficult circumstances. Exploitation and abuse of children should be actively combated, including by addressing their root causes. Effective measures are required against female infanticide, harmful child labour, sale of children and organs, child prostitution, child pornography, and other forms of sexual abuse.^[62] This influenced the adoptions of Optional Protocol on the Involvement of Children in Armed Conflict and Optional Protocol on the Sale of Children, Child Prostitution and Child Pornography.

Enforcement

A variety of enforcement organizations and mechanisms exist to ensure children's rights. They include the Child Rights Caucus for the United Nations General Assembly Special Session on Children. It was set up to promote full implementation and compliance with the Convention on the Rights of the Child, and to ensure that child rights were given priority during the UN General Assembly Special Session on Children and its Preparatory process. The United

Nations Human Rights Council was created "with the hope that it could be more objective, credible and efficient in denouncing human rights violations worldwide than the highly politicized Commission on Human Rights." The NGO Group for the Convention on the Rights of the Child is a coalition of international non-governmental organizations originally formed in 1983 to facilitate the implementation of the United Nations Convention on the Rights of the Child.

National law

Many countries around the world have children's rights ombudspeople or children's commissioners whose official, governmental duty is to represent the interests of the public by investigating and addressing complaints reported by individual citizens regarding children's rights. Children's ombudspeople can also work for a corporation, a newspaper, an NGO, or even for the general public.

United States law

Further information: Timeline of young people's rights in the United States, International child abduction in the United States, and Child labor laws in the United States

The United States has signed but not ratified the CRC. As a result, children's rights have not been systematically implemented in the U.S.

Children are generally afforded the basic rights embodied by the Constitution, as enshrined by the Fourteenth Amendment to the United States Constitution. The Equal Protection Clause of that amendment is to apply to children, born within a marriage or not, but excludes children not yet born.^[63] This was reinforced by the landmark US Supreme Court decision of In re Gault (1967). In this trial 15-year-old Gerald Gault of Arizona was taken into custody by local police after being accused of making an obscene telephone call. He was detained and committed to the Arizona State Industrial School until he reached the age of 21 for making an obscene phone call to an adult neighbor. In an 8–1 decision, the Court ruled that in hearings which could result in commitment to an institution, people under the age of 18 have the right to notice and counsel, to question witnesses, and to protection against self-incrimination. The Court found that the procedures used in Gault's hearing met none of these requirements.^[64]

The Supreme Court of the United States ruled in the case of Tinker v. Des Moines Independent Community School District (1969) that students in school have Constitutional rights.^[65]

The Supreme Court of the United States has ruled in the case of Roper v. Simmons that persons may not be executed for crimes committed when below

the age of eighteen. It ruled that such executions are cruel and unusual punishment, so they are a violation of the Eighth Amendment to the United States Constitution.^[66]

There are other concerns in the United States regarding children's rights. The American Academy of Adoption Attorneys is concerned with children's rights to a safe, supportive and stable family structure. Their position on children's rights in adoption cases states that, "children have a constitutionally based liberty interest in the protection of their established families, rights which are at least equal to, and we believe outweigh, the rights of others who would claim a 'possessory' interest in these children." Other issues raised in American children's rights advocacy include children's rights to inheritance in same-sex marriages and particular rights for youth.

German law

A report filed by the President of the INGO Conference of the Council of Europe, Annelise Oeschger finds that children and their parents are subject to United Nations, European Union and UNICEF human rights violations. Of particular concern is the German (and Austrian) agency, Jugendamt (German: Youth office) that often unfairly allows for unchecked government control of the parent-child relationship, which have resulted in harm including torture, degrading, cruel treatment and has led to children's death. The problem is complicated by the nearly "unlimited power" of the Jugendamt officers, with no processes to review or resolve inappropriate or harmful treatment. By German law, Jugendamt (JA) officers are protected against prosecution. JA officers span of control is seen in cases that go to family court where experts testimony may be overturned by lesser educated or experienced JA officers; In more than 90% of the cases the JA officer's recommendation is accepted by family court. Officers have also disregarded family court decisions, such as when to return children to their parents, without repercussions. Germany has not recognized related child-welfare decisions made by the European Parliamentary Court that have sought to protect or resolve children and parental rights violations.^[67]

What Is Child Rights ?

A right is as an agreement or contract established between the persons who hold a right (often referred to as the "rights-holders") and the persons or institutions which then have obligations and responsibilities in relation to the realization of that right (often referred to as the "duty- bearers".) Child rights are specialized human rights that apply to all human beings below the age of 18.

Universally child rights are defined by the United Nations and United Nations Convention on the Rights of the Child (UNCRC). According to the UNCRC Child Rights are minimum entitlements and freedoms that should be afforded to

all persons below the age of 18 regardless of race, colour, gender language, religion, opinions, origins, wealth, birth status or ability and therefore apply to all people everywhere. The UN finds these rights interdependent and indivisible, meaning that a right can not be fulfilled at the expense of another right.

The purpose of the UNCRC is to outline the basic human rights that should be afforded to children. There are four broad classifications of these rights. These four categories cover all civil, political, social, economic and cultural rights of every child.

- **Right to Survival:** A child's right to survival begins before a child is born. According to Government of India, a child life begins after twenty weeks of conception. Hence the right to survival is inclusive of the child rights to be born, right to minimum standards of food, shelter and clothing, and the right to live with dignity.
- **Right to Protection:** A child has the right to be protected from neglect, exploitation and abuse at home, and elsewhere.
- **Right to Participation:** A child has a right to participate in any decision making that involves him/her directly or indirectly. There are varying degrees of participation as per the age and maturity of the child.
- **Right to Development:** Children have the right to all forms of development: Emotional, Mental and Physical. Emotional development is fulfilled by proper care and love of a support system, mental development through education and learning and physical development through recreation, play and nutrition.

What Is Child Protection?

UNICEF considers child protection as the prevention of or responding to the incidence of abuse, exploitation, violence and neglect of children. This includes commercial sexual exploitation, trafficking, child labour and harmful traditional practices, such as female genital mutilation/cutting and child marriage. Protection also allows children to have access to their other rights of survival, development, growth and participation. UNICEF maintains that when child protection fails or is absent children have a higher risk of death, poor physical and mental health, HIV/AIDS infection, educational problems, displacement, homelessness, vagrancy and poor parenting skills later in life.

According to the Integrated Child Protection Scheme (ICPS) Child Protection is about keeping children safe from a risk or perceived risk to their lives or childhood. It is about recognizing that children are vulnerable and hence reducing their vulnerability by protecting them from harm and harmful situations. Child protection is about ensuring that children have a security net to

depend on, and if they happen to fall through the holes in the system, the system has the responsibility to provide the child with the necessary care and rehabilitation to bring them back into the safety net.

Understanding the Difference

CHILD PROTECTION

Prevention	Intervention
Law and Policies Processes and Protocols Mechanisms and Systems Monitoring Sensitization and Awareness Building	Law and Policies Access and Assistance Immediate Relief (SOS attention) Restoration of rights/Status Quo Punish violators

It is important to understand the difference between these two concepts. Child rights are a set of principles or ideals. They are entitlements and some of them are justifiable in a court of law, but they are not tangible. Protection is one of these rights. But Child Protection is more than a right. It is a framework or system by which the rights of a child can come to be. The framework consists of various duty bearers such as the departments of the government, police, school, civil society, who all have roles to play to ensure that a child's rights are met, and in the case that a child's rights are violated that the violator be brought to justice and care be provided to the child. Child protection is not only treatment, but should also be preventive. Risk management needs to take place to reduce the risk of violation of child rights in any given circumstance or space.

Child protection is hence the means through which all other rights of a child can be upheld. For example a child has a right to live a normal childhood in a family environment. The child protection framework need to first take steps to ensure families are able to survive by providing them when health, education, and food for free or at minimal cost. The next step is to address the needs of children who have fallen through the cracks such as destitute, abandoned, and orphan children. The framework includes the mechanisms to relocate these children into caring families either through adoption or foster care and provide these children with access to health and education services. Hence the framework is not a single ministry or single government body it is the interlinking functions of all ministries and sectors. (Source Childline)

Statistics On Underprivileged Children In India

There are 444 million children in India under the age of 18 years. This constitutes 37% of the total population in the country (Census 2011)

Education:

- 1 in 4 children of school-going age is out of school in our country – 99 million children in total have dropped out of school (Census 2011)
- Out of every 100 children, only 32 children finish their school education age-appropriately (District Information System for Education (DISE) 2014-15)
- Only 2% of the schools offer complete school education from Class 1 to Class 12 (District Information System for Education (DISE) 2014-15)

Child Labour And Exploitation:

- There are 10.13 million child labourers between 5-14 years in India (Census 2011)
- India has 33 million working children between the ages of 5-18 years. In parts of the country, more than half the child population is engaged in labour (Census 2011)
- Every 8 minutes, a child goes missing in India – kidnapping and abduction is the largest crime against children in our country (District Crime Record Bureau (DCRB) 2014)
- Over the last 10 years, crimes against children has increased 5 times over (District Crime Record Bureau (DCRB) Data Series)
- Fear of failure in examinations is the second highest cause of suicides in children (Accidents and Suicide Deaths in India (ASDI) 2014)

Health:

- The health indicators of children in India are among the worst in the world – only around half (54%) of the infants in India are fully immunised. More than half the births in the country continue to remain home-births (National Family Health Survey (NFHS) 3)
- 4 out of 5 children under 3 years of age in the country are anemic (National Family Health Survey (NFHS) 3)
- 3 out of 5 children are malnourished (National Family Health Survey (NFHS) 3)
- Around 8.5 lakh children are estimated to die before their first birthday each year (Census 2011 and Sample Registration System (SRS) 2013)
- Latest NFHS data shows that less than one-third infants receive adequate diet in all states in the country* (National Family Health Survey (NFHS) 4)
- *Data has been released for 18 states and Union Territories

Girl Child:

- 42% of married women in India were married as children (District Information System for Education (DISE) 3)
- 1 in every 3 child brides in the world is a girl in India (UNICEF)
- India has more than 4.5 lakh girls under 15 years of age who are married with children. Out of these, 70% of the girls have 2 children (Census 2011)

The Importance of Women's Empowerment in India

WHAT IS WOMEN EMPOWERMENT?

Women's empowerment refers to the process of enabling women to have greater control over their lives and to be able to make their own decisions. This can include empowering women to participate fully in the economy and in the political process, as well as empowering them to make decisions about their own health and well-being. Women's empowerment is important because it can lead to a range of positive outcomes, including increased economic growth and development, improved health and well-being, and greater gender equality.

In India, women's empowerment has been a key issue for many years.

Despite some progress in recent decades, women in India continue to face significant challenges when it comes to gender equality. These challenges include discrimination, lack of access to education and employment, and gender-based violence.

SOME OF THE CHALLENGES FACING WOMEN IN INDIA:

Discrimination: Women in India often face discrimination in many areas of life, including in the home and in the workplace. This can make it difficult for them to access education and employment opportunities, and can lead to unequal treatment and lower pay.

Lack of access to education and employment: Women in India face significant barriers when it comes to accessing education and employment. For example, data from the World Bank shows that only around 50% of women in India participate in the labour force, compared to around 80% of men. This is due in part to cultural and social barriers that prevent women from participating in the workforce, as well as lack of access to education and training.

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women from participating in the workforce, as well as lack of access to education and training.

Gender-based violence is a major problem in India. The National Crime Records Bureau reports that in 2021, there were over 428,278 reported cases of violence against women in India. This included incidents of physical and sexual assault, as well as dowry-related violence and female infanticide. The statistics are alarming, with 31,677 reported rapes against women in 2021 alone.

Poverty: Many women in India live in poverty, particularly in rural areas. Poverty can make it difficult for women to access education and employment, and can lead to other challenges such as poor health and malnutrition.

Disparities between urban and rural areas: Women in rural areas of India often face greater challenges when it comes to empowerment. For example, they may have less access to education and health care, and may be more isolated and vulnerable to gender-based violence.

HOW EMPOWERING WOMEN CAN CHANGE WOMEN'S LIVES IN INDIA?

Women's empowerment can have a range of **positive impacts on women's lives**, including improved **economic opportunities**, greater **control over their own lives**, increased **political participation**, and greater **gender equality**. By empowering women to participate fully in the economy, women can have access to **better paying jobs**, which can help to lift them and their families out of poverty. Empowering women can also give them more control over their own lives, allowing them to make decisions about their **own health, well-being, and future**, which can lead to increased self-esteem and confidence, as well as improved mental and physical health. When women are empowered to participate in the political process, they can have a greater say in the decisions that affect their lives and their communities, leading to more inclusive and representative decision-making and policies and programs that better address the needs of women and girls. Women's empowerment can also help to reduce gender inequality and promote greater gender equality, leading to more balanced relationships between men and women and positive impacts on women's health, well-being, and overall quality of life.

As you read about the challenges facing women in India, we hope that you are inspired to take action and make a difference. One way to support women's empowerment in India is by making a donation to organisations that are dedicated to improving the lives of women and girls in India through

education and health care. Naarisamata is one such organisation that is committed to this cause. Your donation can help to provide these vital services and make a real difference in the lives of women and girls in India. Whether you can give a small or large amount, every donation makes a difference and can help to create a brighter future for women in India. Please consider making a donation to Naarisamata today and join us in the fight for gender equality and women's empowerment in India.

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